

Namepal v. State of U.P.

Allahabad High Court · Division Bench · 24 August 2017 · Writ-C No. 38453 of 2017 (All) · Writ - C No. 38453 of 2017 · **Writ disposed; consumer relegated to EE billing dispute or s.127 appeal.**

HEADNOTE

Writ against recovery of crusher-connection electricity dues alleged as theft disposed of without examining the assessment. The consumer was directed to a billing-dispute application before the Executive Engineer or, if a final assessment existed, a section 127 appeal; the chosen forum was to decide in accordance with law if approached within fifteen days.

FACTUAL SUMMARY

Namepal challenged recovery of electricity dues on a commercial crusher connection alleged to involve theft. He said a new connection had been granted after permanent disconnection of the earlier supply, so there was no consumption supporting assessment or prosecution, and no FIR had been registered. The licensee submitted that he had not objected to the provisional assessment, which therefore stood as a final assessment justifying recovery. He invoked sections 126 and 127 of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ relegation to billing dispute or s.127 appeal

HOLDING

A writ against recovery of electricity dues on an alleged theft assessment is not decided on merits. The consumer's remedy is a billing-dispute application before the Executive Engineer or, if a final assessment has been made, an appeal under section 127 of the Electricity Act, 2003 (styled in the order as the U.P. Electricity Act, 2003), read with the U.P. Electricity Supply Code, 2005. If those forums are approached within fifteen days, the authority shall pass appropriate orders in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NON-FILING OF OBJECTIONS CONVERTED THE PROVISIONAL ASSESSMENT INTO A FINAL ASSESSMENT

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NOT DECIDED — MERITS OF THE THEFT ALLEGATION AND WHETHER A NEW CONNECTION AFTER PERMANENT DISCONNECTION PRECLUDED ASSESSMENT

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NOT DECIDED — EXISTENCE OR MAINTAINABILITY OF CRIMINAL PROCEEDINGS FOR THE ALLEGED THEFT

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